

SUPREME COURT OF THE STATE OF N.Y.  
COUNTY OF BRONX

INTENTIONAL TORT

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Index No.:

KIMALA GREEN,

Date of Filing:

Plaintiff,

Plaintiff designates BRONX  
County as the place of  
trial.

-against-

VILLAGE SUPER MARKET OF NY LLC,  
d/b/a SHOPRITE OF BRUCKNER BLVD.,  
THE CITY OF NEW YORK and "JOHN"  
(first name unknown) FLORES,

**SUMMONS**

The basis of venue is:  
County where incident  
occurred.

Defendants.

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Plaintiff resides at: 45  
East Mosholu Parkway, Apt.  
2G, Bronx, New York 10467.

County of Bronx

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons to serve a notice of appearance on the plaintiff's attorney within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 20 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
November 11, 2019



MITCHEL I. HERSTIC, ESQ.  
Attorney for Plaintiff  
111 John Street  
Room 2200  
New York, New York 10038  
(212) 349-5180

**DEFENDANTS' ADDRESS(ES):**

VILLAGE SUPER MARKET  
1994 Bruckner Blvd.  
Bronx, New York

THE CITY OF NEW YORK  
100 Church Street  
New York, NY 10007  
New York, N. Y. 10007

"JOHN" FLORES  
900 Fteley Ave.  
Bronx, NY 10473

SUPREME COURT OF THE STATE OF N.Y.  
COUNTY OF BRONX

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KIMALA GREEN,

Plaintiff,

-against-

Index No.:

VILLAGE SUPER MARKET OF NY LLC,  
d/b/a SHOPRITE OF BRUCKNER BLVD.,  
THE CITY OF NEW YORK and "JOHN"  
(first name unknown) FLORES,

VERIFIED COMPLAINT

Defendants.

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Plaintiff, complaining of the Defendants,

by her attorney, MITCHEL I. HERSTIC, ESQ., does hereby  
respectfully show to this Honorable Court and alleges as follows,  
upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION BY THE  
PLAINTIFF, KIMALA GREEN, AGAINST THE  
DEFENDANT, VILLAGE SUPER MARKET OF NY LLC:

FIRST: That on or about the 16th day of  
November, 2018, Defendant, VILLAGE SUPER MARKET OF NY LLC, was,  
and still is, a domestic limited liability company duly organized  
and existing, under, and by virtue of, the laws of the State of  
New York.

SECOND: That on or about the 16th day of  
November, 2018, Defendant, VILLAGE SUPER MARKET OF NY LLC, owned  
and operated SHOPRITE SUPERMARKET OF BRUCKNER BOULEVARD., located  
at 1994 Bruckner Boulevard, Bronx, New York.

THIRD: That on or about the 16th day of November, 2019, Defendant, VILLAGE SUPER MARKET OF NY LLC, d/b/a SHOPRITE OF BRUCKNER BLVD., employed various Loss Prevention Officers, Security Officers and/or agents in said supermarket.

FOURTH: That on or about the 16th day of November, 2018, at approximately 6:45 P.M., the Plaintiff herein, KIMALA GREEN was a lawful customer at the SHOPRITE OF BRUCKNER BLVD. and lawfully purchased items at said store and paid for them.

FIFTH: That on or about the 16th day of November, 2018, at approximately 6:45 P.M., after the Plaintiff, KIMALA GREEN paid for her groceries at said SHOPRITE location, said Plaintiff was falsely detained by a Loss Prevention Officer employed by Defendant VILLAGE SUPER MARKET OF NY LLC, d/b/a SHOPRITE OF BRUCKNER BLVD., and was falsely accused of committing petit larceny.

SIXTH: Thereupon, on November 16, 2018, at approximately 6:45 P.M., the aforesaid Loss Prevention Officer did detain, seize and hold Plaintiff KIMALA GREEN, and detained said Plaintiff without any reasonable or probable cause, and contrary to the laws of the State of New York.

SEVENTH: That subsequently, said Loss Prevention Officer called 911 and the NYPD arrived at said location and falsely arrested the Plaintiff herein.

EIGHTH: That thereafter, the Plaintiff herein was handcuffed and taken to the 43rd Precinct, searched and detained.

NINTH: That on November 16, 2018, the Plaintiff herein was given a desk appearance ticket while at the 43rd Precinct, and was charged with petit larceny (Penal Law Section 155.25).

TENTH: That on the 16th day of November, 2018, at approximately 10:36 P.M., the Plaintiff herein, KIMALA GREEN was released from custody at the 43rd Precinct.

ELEVENTH: That on the 16th day of January, 2019, the Plaintiff herein accepted an adjournment in contemplation of dismissal (A.C.D.) concerning the petty larceny charge.

TWELFTH: That on the 16th day of July, 2019, after the expiration of sixth months following Plaintiff's acceptance of the A.C.D., the charge of petty larceny was dismissed.

THIRTEENTH: That on the 4th day of December, 2018, the Plaintiff herein was hired as a home health aid subject to a background check.

FOURTEENTH: That as a result of the Plaintiff's arrest on the 16th day of November, 2018, said Plaintiff was not hired by her perspective employer and thus sustained a loss of earnings.

FIFTEENTH: That the aforesaid incident involving the Plaintiff herein, KIMALA GREEN, was caused solely by the actions

of the Defendant herein, VILLAGE SUPER MARKET OF NY LLC, d/b/a SHOPRITE OF BRUCKNER BLVD. without any negligence on the part of said Plaintiff contributing thereto.

SIXTEENTH: That as a result of said false arrest and wrongful detention, the Plaintiff herein, KIMALA GREEN has been damaged in a sum which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this matter.

AS AND FOR A SECOND CAUSE OF ACTION BY  
PLAINTIFF KIMALA GREEN, AGAINST  
DEFENDANTS, THE CITY OF NEW YORK and  
"JOHN" (first name unknown) FLORES FOR  
FALSE ARREST AND WRONGFUL DETENTION:

SEVENTEENTH: Plaintiff, KIMALA GREEN, repeats, reiterates and realleges each and every allegation contained in Paragraphs numbered FIRST through FIFTEENTH inclusive of the Complaint, as if set forth more fully at length herein.

EIGHTEENTH: That on or about the 16th day of November, 2018, Defendant, THE CITY OF NEW YORK, was, and still is, a municipal corporation duly organized and existing, under, and by virtue of, the laws of the State of New York.

NINETEENTH: That on or about the 16th day of November, 2018, Defendant, THE CITY OF NEW YORK, employed various police officers, agents, servants and employees to staff, train, operate and manage the NEW YORK POLICE DEPARTMENT.

TWENTIETH: That on or about the 16th day of November, 2018, Defendant "JOHN" (first name unknown) FLORES was employed as a Police Officer by the New York Police Department, and was assigned to the 43rd Precinct.

TWENTY-FIRST: That on or about the 16th day of November, 2018, at approximately 6:45 P.M., a Loss Prevention Officer at the aforementioned SHOPRITE called 911 and falsely accused the Plaintiff herein with committing petty larceny.

TWENTY-SECOND: That on or about the 16th day of November, 2018, at approximately 6:45 P.M., while the Plaintiff herein, KIMALA GREEN was lawfully and peacefully at the aforementioned SHOPRITE location, said Plaintiff was falsely detained by NYPD Police Officer "JOHN" FLORES, and was charged with petty larceny, violation of Section 155.25 of the Penal Law.

TWENTY-THIRD: Thereupon, on November 16, 2018, at approximately 6:45 P.M., NYPD Police Officer "JOHN" FLORES did detain, seize and hold Plaintiff KIMALA GREEN, and detained said Plaintiff without any reasonable or probable cause, and contrary to the laws of the State of New York.

TWENTY-FOURTH: That subsequently, said Loss Prevention Officer called 911 and the NYPD arrived at said location and falsely arrested the Plaintiff herein was taken to the 43rd Precinct, search, and placed in a holding cell.

TWENTY-FIFTH: That on November 16, 2018, the Plaintiff herein was given a desk appearance ticket while at the 43rd Precinct, and was charged with petit larceny (Penal Law Section 155.25).

TWENTY-SIXTH: That on the 16th day of November, 2018, at approximately 10:36 P.M., the Plaintiff herein, KIMALA GREEN was released from custody at the 43rd Precinct.

TWENTY-SEVENTH: That on the 16th day of January, 2019, the Plaintiff herein accepted an adjournment in contemplation of dismissal (A.C.D.) concerning the petty larceny charge.

TWENTY-EIGHTH: That on the 16th day of July, 2019, after the expiration of sixth months following Plaintiff's acceptance of the A.C.D., the charge of petty larceny was dismissed.

TWENTY-NINTH: That on the 4th day of December, 2018, the Plaintiff herein was hired as a home health aid subject to a background check.

THIRTIETH: That as a result of the Plaintiff's arrest on the 16th day of November, 2018, said Plaintiff was not hired by her perspective employer and thus sustained a loss of earnings.

THIRTY-FIRST: That the aforesaid incident involving the Plaintiff herein, KIMALA GREEN, was caused by the actions of the Defendants herein, THE CITY OF NEW YORK and "JOHN" FLORES as

herein above alleged, without any negligence on the part of said Plaintiff contributing thereto.

THIRTY-SECOND: That the Plaintiff herein has complied with all conditions precedent to the bringing of this action, and has complied with all of the provisions of the Charter of the City of New York, and that prior to the bringing of this action, the Plaintiff duly served notice upon The City of New York of her intention to sue upon the claim set forth, and more than thirty days have elapsed since the presentation of said Notice of Claim, and that said claim remains unadjusted, and that the Comptroller has failed and/or refused to make any adjustments thereof, and this action has been commenced within the time provided for in the statute and act therefor.

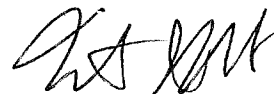
THIRTY-THIRD: That on the 3rd day of May, 2019, a Hearing was held pursuant to section 50-H of the General Municipal Law.

THIRTY-FOURTH: That as a result of said false arrest and wrongful detention, the Plaintiff herein, KIMALA GREEN has been damaged in a sum which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this matter.

WHEREFORE, the Plaintiff herein, KIMALA GREEN, demands judgment against the Defendant, VILLAGE SUPER MARKET OF NY LLC, d/b/a SHOPRITE OF BRUCKNER BLVD. on the First



Cause of Action, and demands judgment on the Second Cause of Action against Defendants, THE CITY OF NEW YORK and "JOHN" FLORES in a sum which exceeds the jurisdictional limits which the lower courts would otherwise maintain, together with the costs and disbursements of this action.



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MITCHEL I. HERSTIC, ESQ.  
Attorney for Plaintiff  
111 John Street  
Room 2200  
New York, New York 10038  
(212) 349-5180

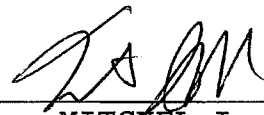
ATTORNEY CERTIFICATION

Pursuant to 22 NYCRR, Sect. 130-1.1. A

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, respectfully affirms the truth of the following statement under the penalty of perjury pursuant to the C.P.L.R..

The undersigned attorney hereby certifies that to the best of his/her knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper(s) or the contents therein are not frivolous as defined in Subsection C of Sect. 130-1.1.

Dated: New York, New York  
November 11, 2019



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MITCHEL I. HERSTIC

VERIFICATION

STATE OF NEW YORK )  
COUNTY OF NEW YORK) ss.:

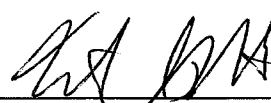
I, the undersigned, an attorney admitted to practice in law in the Courts of New York State, state that I am the attorney of record for the Plaintiff in the within action; I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein alleged to be on information and belief, and as to those matters I believe to be true.

The reason this verification is made by your affirmant and not by the Plaintiff herein is that the Plaintiff resides in a county other than the county where your affirmant maintains his law office.

The grounds of your affirmant's belief as to all matters not stated upon my own knowledge are as follows:

Conversations with the Plaintiff and information in the file.

Dated: New York, New York  
November 11, 2019



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MITCHEL I. HERSTIC